

Iowa, local governments are not liable for injuries caused by the execution with due care of any "officially enacted" statute or regulation.²⁴

Sixteen States and the District of Columbia follow the traditional rule against recovery for damages imposed by discretionary decisions that are confided to particular officers or organs of government.²⁵ Indeed, the leading commentators on governmental tort liability have noted both the appropriateness and general acceptance of municipal immunity for discretionary acts. See Restatement (Second) of Torts § 895C (2) and Comment *g* (1979); K. Davis, *Administrative Law of the Seventies* § 25.13 (1976); W. Prosser, *Law of Torts* 986-987 (4th ed. 1971). In four States, local governments enjoy complete immunity from tort actions unless they have taken out liability insurance.²⁶ Only five States

515, 516-518, 248 S. E. 2d 480, 481-482 (1978), see S. C. Code §§ 5-7-70, 15-77-230 (1976 and Supp. 1979); 1979 Wyo. Sess. Laws, ch. 157, § 1 (to be codified as Wyo. Stat. §§ 1-39-105 to 112).

²⁴ Iowa Code § 613A.4 (3) (1979).

²⁵ Cal. Gov't Code Ann. §§ 815.2, 820.2 (West 1966); *Tango v. New Haven*, 173 Conn. 203, 204-205, 377 A. 2d 284, 285 (1977); *Biloon's Electrical Serv., Inc. v. Wilmington*, 401 A. 2d 636, 639-640, 643 (Del. Super. 1979); *Spencer v. General Hospital of the District of Columbia*, 138 U. S. App. D. C. 48, 53, 425 F. 2d 479, 484 (1969) (en banc); *Commercial Carrier Corp. v. Indian River County*, 371 So. 2d 1010, 1020 (Fla. 1979); Ga. Code § 69-302 (1978); *Frankfort Variety, Inc. v. Frankfort*, 552 S. W. 2d 653 (Ky. 1977); Me. Rev. Stat. Ann., Tit. 14, § 8103 (2)(C) (Supp. 1965-1979); *Merrill v. City of Manchester*, 114 N. H. 722, 729, 332 A. 2d 378, 383 (1974); N. J. Stat. Ann. §§ 59:2-2 (b) and 59:2-3 (West Supp. 1979-1980); *Weiss v. Fote*, 7 N. Y. 2d 579, 585-586, 167 N. E. 2d 63, 65-66 (1960); *Calhoun v. Providence*, — R. I. —, 390 A. 2d 350, 355-356 (1978); Tenn. Code Ann. § 23-3311 (1) (Supp. 1979); Tex. Rev. Civ. Stat. Ann., Art. 6252-19, § 14 (7) (Vernon 1970); Utah Code Ann. § 63-30-10 (1) (1953); *King v. Seattle*, 84 Wash. 2d 239, 246, 525 P. 2d 228, 233 (1974) (en banc); Wis. Stat. § 895.43 (3) (1977).

²⁶ Colo. Rev. Stat. § 24-10-104 (1973); Mo. Rev. Stat. § 71.185 (1978); N. C. Gen. Stat. § 160A-485 (1976); Vt. Stat. Ann., Tit. 29, § 1403 (1970).